

4. Negligence

The Court finds no merit in ATC’s arguments that Mr. Fallin failed to allege that ATC owed Fallin a duty of care.

“In determining liability for negligence, we begin always with the command of Civil Code section 1714, subdivision (a) . . .” (*Christensen v. Super. Ct.* (1991) 54 Cal.3d 868, 885 [*Christiansen*].) That statute provides, “[e]veryone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself.” (Civil Code, § 1714, subd. (a).) “In the absence of a statutory provision limiting this rule, exceptions to the general principle imposing liability for negligence are recognized only when clearly supported by public policy.” (*Christiansen*, *supra*, at p. 885.)

That this general provision is broad enough to include a duty to avoid trespassing onto the property of another and causing damage to timber thereon is made clear by Civil Code section 3346. This duty is precisely what Mr. Fallin alleges through the Complaint.

5. ATC Fails to Persuade the Court that the Complaint is Uncertain

A demurrer for uncertainty is disfavored and strictly construed; even where a complaint is in some respects uncertain ambiguities can be clarified under modern discovery procedures. (See *Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135 (*Lickiss*) [held: a demurrer for uncertainty is disfavored and strictly construed; even where a complaint is in some respects uncertain, ambiguities can be clarified under modern discovery procedures]) As noted above, “a plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action. [Citation.]” (*Doheny Park*, *supra*, 132 Cal.App.4th at 1098-1099.)

The Court finds that the Complaint is intelligible and articulates the allegations sufficiently to acquaint ATC with the nature, source and extent of the claims against it.

6. Conclusion

Based on the foregoing, the demurrer is OVERRULED. ATC is granted 10 Court days’ leave from entry of the instant order to answer the Complaint.

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Zhi Wei Liu v. Napa Crossing East II, LLC

25CV002180

MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

TENTATIVE RULING: The motion is GRANTED. The clerk is directed to set aside the Default entered against Defendant Napa Crossing East II, LLC (“Defendant”) on January 15,

2026 and the Default Judgment entered against Defendant on April 6, 2026. Defendant's request for monetary sanctions is DENIED. Defendant is granted 10 days' leave to file the Answer in substantially the same form as that attached as Exhibit A to the Motion. Defendant is ordered to pay to Plaintiff, care of its attorneys of record, compensatory legal fees and costs in the amount of \$3,123.48, within 10 days of this ruling.

Defendant Napa Crossing East II, LLC ("Defendant") moves, pursuant to California Code of Civil Procedure section 473, subdivision (b),⁶ for an order to set aside the Clerk's Default, and if entered, Default Judgment entered on January 15, 2026.

"The court may, upon any terms as may be just, relieve a party . . . from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect The application . . . shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc. § 473, subd. (b).)

Notwithstanding any other requirements of this section, the court *shall*, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (*Ibid.* Emphasis added.) "The court *shall*, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties." (*Id.* Emphasis added.) As long as the default resulted from attorney neglect, the attorney's "affidavit of fault" compels relief from both the default and any resulting default judgment. (See *Cisneros v. Vuevo* (1995) 37 Cal.App.4th 906, 909, fn. 2.)

Here, Defendant's attorney submitted an attorney's affidavit of fault attesting to the attorney's mistake and/or neglect. (Declaration of Carter Glahn ("Glahn Decl."), at ¶¶ 3-5, 11.) While the Glahn Declaration places an alternate fault on Plaintiff's lack of service, there is no evidence rebutting Plaintiff's 10/30/25 Proof of Service. (See *id.*, ¶ 3.) While the Reply appears to place the fault on Defendant, that is inconsistent with the position of Defendant's Motion. (See *ibid.* "[A]ny delay in the filing of any responsive pleading . . . was not the fault of the Defendant in any case.")

Finally, Defendant's reliance on Plaintiff's failure to contact Defendant prior to requesting default in violation of section 583.130 (requiring all parties to cooperate in bringing the action to trial or other disposition) is unavailing. Plaintiff submits evidence showing that its counsel complied with section 583.130, by serving a courtesy copy on Defendant's counsel in addition to formal notice, receiving confirmation by Defendant's counsel of receipt of the complaint, waiting additional time prior to requesting default, and working towards a stipulation to vacate default. This is not analogous to the facts in *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, relied upon by Defendant. Moreover, even if Plaintiff's counsel violated an ethical duty to

⁶ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

warn Defendant’s counsel before requesting default, that, alone, does not serve as grounds to vacate default without excusable neglect, mistake, inadvertence, etc. on the part of Defendant’s counsel. The Court finds no excusable mistake or neglect sufficiently articulated in the Glahn Decl.

Importantly, “[w]here an ‘attorney affidavit of fault’ is filed, there is no requirement that the attorney’s mistake, inadvertence, etc. be excusable. Relief *must* be granted even where the default resulted from *inexcusable* neglect by defendant’s attorney.” (Weil and Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group, 2026) ¶ 5:295; see also *Martin Potts & Assocs., Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 438-41 [The attorney’s affidavit of fault need not include an explanation of the reasons for the attorney’s mistake, inadvertence, surprise or neglect.].) Based on the foregoing, the Motion is GRANTED.

Defendant’s request for monetary sanctions against Plaintiff’s counsel is DENIED on the ground that Defendant provides no authority in support thereof.

Plaintiff’s request for Defendant’s counsel to pay reasonable compensatory legal fees and costs associated with the entry of default and default judgment filings, totaling \$6,246.95, pursuant to section 473, subdivision(b), is GRANTED IN PART. The Court is unable to find the total amount requested is reasonable, as counsel provides no support for the hourly rate and no explanation of the hours spent. (See Declaration of Sean M. O’Neill, at ¶ 20.) The Court reduces the requested amount by half, as that reduction comprises six reasonable hours of work regarding default at a rate of approximately \$500/hr.

****at 9:30 a.m.****

**Napa County Flood Control and Water Conservation
District et al v. California Vacation Holdings Group, LLC et al**

**25CV000695
(24CV001395)**

PLAINTIFF CALIFORNIA VACATION CLUB’S MOTION FOR SUMMARY
ADJUDICATION OF THE FIRST AND THIRD CAUSES OF ACTION

TENTATIVE RULING: The motion is DENIED.

A. PRELIMINARY MATTERS

Pursuant to the Notice of Motion, Plaintiff California Vacation Club (CVC and Plaintiff) moves, pursuant to Code of Civil Procedure section 437c, for summary adjudication on Plaintiff’s Breach of Contract cause of action (Breach of Contract Claim) and Declaratory Relief cause of action (Dec. Relief Claim) asserted against Defendant California Vacation Holdings Group, LLC (CVHG and Defendant). (See Notice of Motion at 1:25-27 [“Plaintiff . . . move[s] for summary adjudication against Defendant . . . as to the first, and third causes of action asserted by Plaintiff in its First Amended Verified Complaint”]; see also *id.* at 2:9-16 [“The court must